

Short Title	Session and Chapter
Cheshire and Lancashire County Councils (Runcorn-Widnes Bridge, etc.) Act, 1947.	10 & 11 Geo. 6. c. xxix.
Criminal Justice Act, 1948	11 & 12 Geo. 6. c. 58.
Justices of the Peace Act, 1949	12 13 & 14 Geo. 6. c. 101.
Administration of Justice (Pensions) Act, 1950 ...	14 & 15 Geo. 6. c. 11.
Costs in Criminal Cases Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2. c. 48.
Magistrates' Courts Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2. c. 55.
Criminal Justice Administration Act, 1956 ...	4 & 5 Eliz. 2. c. 34.
Sexual Offences Act, 1956	4 & 5 Eliz. 2. c. 69.
Mental Health Act, 1959	7 & 8 Eliz. 2. c. 72.
Hertfordshire County Council Act, 1960 ...	8 & 9 Eliz. 2. c. xlix.
Lancashire Quarter Sessions Act, 1961	9 & 10 Eliz. 2. c. xiv.

CHAPTER 16

An Act to extinguish any right of navigation on the Forth and Clyde Canal, and the obligations upon the British Transport Commission to keep that canal open and to maintain it for purposes of navigation.

[29th March, 1962]

WHEREAS the waterway now known as the Forth and Clyde Canal (in this Act referred to as the Canal) was constructed in pursuance of various Acts consolidated by the Act chapter lv of the fourth and fifth years of the reign of Her late Majesty Queen Victoria, and has been kept open and maintained for the purpose of navigation between the Firth of Forth and the Firth of Clyde in accordance with the provisions of that Act and of the Caledonian Railway and Forth and Clyde Navigation Companies Act, 1867, and the Regulation of Railways Act, 1873:

And whereas the British Transport Commission (in this Act referred to as the Commission) established by the Transport Act, 1947, are the owners of the Canal by virtue of that Act:

And whereas the Commission are charged under the said Act of 1947 as amended by the Transport Act, 1953, to provide, in such places and to such extent as may appear to the Commission to be expedient, facilities for traffic on inland waterways:

And whereas freight traffic has ceased to pass along the Canal which is now used for navigation mainly by fishing boats and pleasure craft:

And whereas, owing to the increase in the volume and weight of road traffic across the Canal, new bridges are needed and existing bridges require to be strengthened or replaced:

And whereas the cost of providing, operating, maintaining and replacing opening bridges or of providing bridges with navigable headroom over the Canal greatly exceeds the like costs for fixed bridges of low level and for causeways piped for the passage of water, and the provision of such fixed bridges and causeways would be consistent with the maintenance of the Canal for purposes other than navigation:

And whereas it is expedient that the Secretary of State and other authorities responsible for the bridges should be relieved for the future of the excess cost as aforesaid:

And whereas it is expedient therefore that rights of navigation of the Canal should be extinguished, and the Commission relieved of their obligations to maintain it for navigation:

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. On the first day of January, nineteen hundred and sixty-three there shall be extinguished in relation to the Canal as described in the Schedule to this Act—

Extinguish-
ment of
rights and
duties relating
to navigation.

(a) any right of navigation thereon, and

(b) any obligation upon the Commission (whether statutory or otherwise) to keep it open and to maintain it for purposes of navigation, or to do anything for the furtherance of those purposes.

2. This Act may be cited as the Forth and Clyde Canal Short title. (Extinguishment of Rights of Navigation) Act, 1962.

SCHEDULE

Description of Forth and Clyde Canal for the purposes of this Act Section 1.

The Main Canal, commencing by junctions with the Old Harbour, with Junction Dock and with Carron Dock (including the timber basins on each side of Earl's Road), all in the Burgh of Grangemouth in the County of Stirling, and terminating in the parish of Old Kilpatrick in the County of Dunbarton at the foot of the two locks connecting the Canal with the River Clyde and with Bowling Harbour respectively (a length of 34 miles 1,625 yards).

The Glasgow Arm from its commencement by a junction with the main Canal 33 yards south-east of Stockingfield Aqueduct to its termination by a junction with the Monkland Canal at Castle Street Bridge, all in the City of Glasgow (a distance of 3 miles 1,137 yards).



Short Title	Session and Chapter
Caledonian Railway Act, 1867	30 & 31 Vict. c. lx.
Forth and Clyde Navigation Companies Act, 1867	30 & 31 Vict. c. cvi.
Regulation of Railways Act, 1873	36 & 37 Vict. c. 48.
Transport Act, 1947	11 & 12 Geo. 6. c. 49.
Transport Act, 1953	1 & 2 Eliz. 2. c. 13.

CHAPTER 17

An Act to extend the period for which the Secretary of State may make contributions under schemes agreed under section one of the Empire Settlement Act, 1922.
[29th March, 1962]

BE it enacted by the Queen’s most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1 Edw. 8 & 1
Geo. 6. c. 18.
Extension
of period
during which
contributions
may be made.
5 & 6 Eliz. 2. c. 8.
12 & 13 Geo. 5.
c. 13.

1.—(1) Subsection (1) of section one of the Empire Settlement Act, 1937 (which, as amended by the Commonwealth Settlement Act, 1957, prolongs until the thirty-first day of May, nineteen hundred and sixty-two the period authorised by section one of the Empire Settlement Act, 1922, for the continuance of the liability of the Secretary of State under any scheme agreed under the last-mentioned Act) shall have effect as if for the words “nineteen hundred and sixty-two” there were substituted the words “nineteen hundred and sixty-seven”.

(2) The Commonwealth Settlement Act, 1957, is hereby repealed.

Short title
and citation.

2. This Act may be cited as the Commonwealth Settlement Act, 1962, and this Act and the Empire Settlement Acts, 1922 and 1937, may be cited together as the Commonwealth Settlement Acts, 1922 to 1962.